

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

Cr. Revision No.457 of 2024

Date of Decision: 25.07.2024.

Basant Singh Singh

...Petitioner

Versus

State of H.P. and another

...Respondents

Coram

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting?¹ Yes.

For the Petitioner : Mr. Sudhir Thakur, Senior Advocate, with Mr. Karun Negi, Advocate.

For the Respondents : Mr. Anup Rattan Advocate General with Mr. Ajit Sharma, Deputy Advocate General, for respondent No.1.

Rakesh Kainthla, Judge (Oral):

The petitioner (complainant before the learned Trial Court) filed a complaint under Section 156(3) of Cr.P.C. for registration of FIR for the commission of offences punishable under Sections 177, 181 and 182 of IPC and Sections 10A, 33A and 125A read with Section 4 of the Representation of People Act. It was asserted that respondent No.2 (accused before the learned

¹ *Whether reporters of Local Papers may be allowed to see the judgment? Yes.*

Trial Court) filed nominations to contest elections as a Member of the Legislative Assembly. He filed an affidavit giving the incomplete details of the property he owned. As per the petitioner/complainant, this amounts to filing of false affidavit punishable under Sections 10A, 33A and 125A of the Representation of People Act and Sections 177, 181 and 182 of IPC. The learned Magistrate ordered the registration of the FIR, consequent to which the police registered FIR No. 50 of 2021, dated 26.3.2021 and conducted the investigation. The police submitted a cancellation report after the conclusion of the investigation asserting that the accused did not have knowledge regarding the property which was not mentioned by him and it was a *bona fide* error committed by him. It was also found that the Assistant Returning Officer was competent to take action but he had not taken any action and had not refused to accept the affidavit stating it to be incorrect. No cognizable offence was found to have been committed. Hence, the police filed the cancellation report before the Court.

2. The petitioner filed the objections to the cancellation report stating that the cancellation report is not maintainable. The FIR was registered as per the orders of the Court. The affidavit was filed on the direction of the accused. He is responsible for the same. He put his signatures in the token of the correctness on the affidavit. The petitioner had also filed a writ petition before this Court. The Additional Superintendent of Police, Hamipur submitted his report to Superintendent of Police, Hamirpur and Superintendent of Police, Hamirpur also noticed in the report that the complete detail of the property was not mentioned in the affidavit. The difference in the nomination papers for the year 2012-2017 was also noticed by the Investigating Officer but he failed to take any action against the respondent No.2. Therefore, it was prayed that the present objections be accepted and cancellation report be rejected.

3. The learned Trial Court accepted the cancellation report vide order dated 7.3.2024 and held that there was nothing before the Court to show any *mala fide* intention on the part of the accused person and his Advocate. The material placed on record disclosed the commission of a non-cognizable offence.

The Court could treat the protest petition as a private complaint but there was nothing on record to enable the Court to take cognizance of the commission of offences. Hence, the learned Magistrate accepted the cancellation report and rejected the objections preferred against the cancellation report.

4. Being aggrieved from the order passed by the learned Trial Court, the petitioner has approached this Court asserting that the order passed by the learned Trial Court is not sustainable. Respondent No.2 had concealed the details of his and his wife's property deliberately and thereby committed offences punishable under Sections 10A, 33A and 125A read with Section 4 of the Representation of People Act. A complaint was filed by the petitioner based on the filing of the incorrect affidavit under Section 156(3) of Cr.P.C. which was sent to the police for investigation. The police also found the concealment of the property and stated that respondent No.2 did not know the details of the property and the mistake occurred due to inadvertence. The non-mentioning of the property and incomplete assets is an offence under law and the *bona fide* of respondent No.2 could not be made a basis for the cancellation of the FIR. There was sufficient material on record to show the

factum of concealment. Therefore, it was prayed that the present petition be allowed and the police be directed to investigate the matter and file the final report before the Court.

5. I have heard Mr. Sudhir Thakur, learned Senior Counsel, assisted by Mr. Karun Negi, learned counsel for the petitioner.

6. Mr. Sudhir Thakur, learned Senior Counsel for the petitioner submitted that the FIR discloses the commission of cognizable offence. The police were duty bound to carry out the investigation and the defence of the accused could not have been considered during the investigation nor could the same have been accepted by the Court. The question of *bona fide* or *mala fide* is to be seen during the trial and not at this stage. He submitted in the alternative that if the offences were non-cognizable, then in such a situation, the protest petition/objection to the cancellation report should have been taken as a private complaint and the Court should have proceeded further based on the objection to the cancellation report. He relied upon the judgments of the Hon'ble Supreme Court of India in *Resurgence India Vs. Election Commission of*

India and others AIR 2014 SC 344 and *Zunaid Vs. State of U.P. and others AIR 2023 SC 4550* in support of his submission.

7. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

8. The complainant had filed the complaint before the learned Magistrate under Section 156(3) of Cr.P.C. for the commission of offences punishable under Sections 177, 181 and 182 of IPC and Sections 10A, 33A and 125A read with Section 4 of the Representation of People Act. Section 195(i)(a)(i) of the Cr.P.C. provides that no Court shall take cognizance of any offence punishable under Sections 172 to 188 of IPC (both inclusive) except on the complaint in writing of the public servant concerned or of some other public servant to whom he is administratively subordinate. Therefore, the cognizance of the commission of offences punishable under Sections 177, 181 and 182 of IPC could not have been taken except on the complaint made by the public servant and the Court could not have taken cognizance of the commission of these offences based on the police report or the complaint of the petitioner/complainant.

9. In *State of Himachal Pradesh versus Hirda Ram 1998 (1) Crimes (HC) 89*, a complaint was filed for the commission of offences punishable under Sections 181, 420 and 468 of IPC. This Court held that no cognizance for the commission of an offence punishable under Section 181 of IPC could have been taken based on the police challan because of the prohibition contained in Section 195 of Cr.P.C. It was observed:-

[9] Admittedly, the respondent was sent up for trial for the offences under Sections 181, 420 and 468 of, the Indian Penal Code. Section 195, Code of Criminal Procedure, insofar as it is relevant for the purpose of the present case, reads:

1. No Court shall take cognizance (i) of any offence punishable under Sections 172 to 188 (both inclusive) of the Indian Penal Code (45 of 1860), or (ii) of any abetment of, or attempt to commit, such offence, or (iii) of any criminal conspiracy to commit such offence. Except on the complaint in writing of the public servant concerned or of some other public servant to whom he is administratively subordinate.

The offence under Section 181 of the Indian Penal Code falls within the ambit of clause (a) (i) of sub-section (1) of Section 195, Code of Criminal Procedure, quoted above. Therefore, no court could have taken cognizance of such an offence except on the complaint in writing of the public servant concerned or of some other public servant to whom he is administratively subordinate.

[10] In the present case, admittedly, no complaint in writing has been made to the Court by the concerned public servant or by some other public servant to whom

such concerned public servant is subordinate. The cognizance taken by the Learned Chief Judicial Magistrate on the basis of the police report submitted to him under Section 173 of the Code of Criminal Procedure. Such cognizance was, therefore, bad and the entire trial of the respondent stood Vitiated.”

10. It was contended that the Court could have taken cognizance of the commission of offences punishable under Sections 420 and 468 of IPC as these were cognizable. However, this submission was not accepted and it was held that it is not permissible for the Court to split up the challan and take cognizance of the commission of a cognizable offence while leaving the non-cognizable offence. It was observed:-

“[11] It was contended by the learned. Assistant Advocate General that even though the learned Magistrate could not have taken cognizance of the offence under Section 181, Indian Penal Code on the basis of a police report in view of the specific bar under Section 195, Code of Criminal Procedure, the learned Magistrate was fully competent and justified in taking cognizance of the offences under Sections 420 and 468, Indian Penal Code which are not covered by the bar envisaged under Section 195 of the Code of Criminal Procedure. The contention raised by the learned Assistant Advocate General is without any merit.

[12] In *Jit Kumar v. The State of Punjab* 1987 SLJ 156, a police challan for the offences under Sections 186, 353 and 379, the Indian Penal Code was put up for trial against the accused therein. It was held by the High Court of Punjab and Haryana that since the Court could not take cognizance for an offence punishable under Section 186, Indian Penal Code in view of the specific bar provided

under Section 195 of the Code of Criminal Procedure, the Court could not have also entertained the challan in respect of the offences under Sections 353 and 379, Indian Penal Code as well since it was composite challan. The Hon'ble Apex Court in *State of Karnataka v. Hemareddy and another AIR 1981 SC 1417*, also had the occasion to deal with a similar situation and it was held that in cases where in the course of the same transaction an offence for which no complaint by the court is necessary under Section 195 of the Code of Criminal Procedure and an offence for which such a complaint to the Court is necessary, are committed, it is not possible to split up and hold the prosecution of the accused for the offences not mentioned in Section 195 of the Code of Criminal Procedure should be upheld.

[13] In the present case as well the offences under Sections 181 420, and 468 of, the Indian Penal Code are alleged to have been committed in the course of the same transaction and a composite challan in respect of the three offences was submitted, by the police under Section 173, Code of Criminal Procedure before the learned Magistrate. Therefore, such a police challan cannot be split up and it cannot be said that the prosecution of the respondent for the offences not mentioned in Section 195 of the Code of Criminal Procedure was valid and is to be upheld.

[14] Consequently, the learned Magistrate erred in taking cognizance of the offence in view of the specific bar under Section 195 of the Code of Criminal Procedure and the entire trial of the respondent stood vitiated the acquittal of the respondent, as recorded by the learned Additional Sessions Judge, Mandi has, therefore, to be upheld."

11. In the present case, the petitioner/complainant asserted that the respondent no. 2/accused filed a false affidavit and in this manner, he committed offences punishable under

IPC and the Representation of People Act. Hence, all the offences occurred in the course of the same transaction and it is not permissible to take cognizance of the commission of offence punishable under Representation of People Act ignoring the bar of Section 195 of CrPC. Thus, the submission that the learned Trial Court could have taken cognizance based upon the objection/protest petition is not acceptable. Once the offences attracting the bar contained in Section 195 of Cr.P.C. were committed in the course of a transaction, it is impermissible to take cognizance of the cognizable offence. Hence, the police report stating that non-cognizable offences were found to have been committed after the investigation cannot be faulted with.

12. Even otherwise, Section 125A of the Representation of People Act, 1951 provides a penalty for filing a false affidavit and states that such an act would be punishable with imprisonment for a term which may extend to six months or with a fine. This Section, unlike Sections 127, 129, and 130 *inter alia*, does not provide that it will be a cognizable offence. Therefore, one has to fall back upon the Code of Criminal Procedure to determine whether the offence is cognizable or non-cognizable. Schedule II of the Cr.P.C. provides for the

classification of the offence under other laws and provides that where the offence is punishable with imprisonment for less than three years or a fine, it will be a non-cognizable offence. Thus, as per the Schedule of Cr.P.C., the offence punishable under Section 125A will be non-cognizable.

13. It has been stated that the offences punishable under Sections 10A and 33A of the Representation of People Act were made out. However, Section 10A provides for disqualification and Section 33A provides the Right of Information and do not create any offence. Hence, respondent no. 2/accused could not have been punished under these Sections.

14. It was submitted that the complaint was made to the Magistrate and it can be said that the permission was granted under Section 155(2) of the Cr.P.C. to the police to carry out the investigation. This submission is not acceptable. The complaint specifically mentions Section 156(3) and the Court had also proceeded under Section 156(3) of Cr. P.C. No permission was sought from the Court and no permission was granted by the Court for investigating a non-cognisable offence; therefore, the recourse cannot be had to Section 155 of Cr.P.C.

15. In *Resurgence India* (supra), the Hon'ble Supreme Court considered the requirement of filing affidavits and in the course of the judgment held in para 27(3)(ii) that filing of an affidavit with blanks will be hit by Section 125(1) of the Representation of People Act but no action was being taken. There can be no quarrel with the proposition that the filing of a false affidavit is an offence under Section 125(1) of the Representation of the People Act, but the question is how this offence is to be prosecuted and the cited judgment does not assist in determining this question.

16. In *Zunaid* (supra), the Hon'ble Supreme Court held that it is permissible for the Magistrate to take cognizance based on the protest petition and proceed further as per the law. Even this course could not have been adopted in the present case because of the prohibition contained in Section 195 and this judgment does not apply to the present case.

17. It was laid down by the Hon'ble Supreme Court in *Malkeet Singh Gill v. State of Chhattisgarh*, (2022) 8 SCC 204: (2022) 3 SCC (Cri) 348: 2022 SCC OnLine SC 786 that the revisional court is not an appellate jurisdiction and it can only rectify the

patent defect, errors of jurisdiction or the law. It was observed on page 207:

“10. Before advertng to the merits of the contentions, at the outset, it is apt to mention that there are concurrent findings of conviction arrived at by two courts after a detailed appreciation of the material and evidence brought on record. The High Court in criminal revision against conviction is not supposed to exercise the jurisdiction like to the appellate court and the scope of interference in revision is extremely narrow. Section 397 of the Criminal Procedure Code (in short “CrPC”) vests jurisdiction for the purpose of satisfying itself or himself as to the correctness, legality or propriety of any finding, sentence or order, recorded or passed, and as to the regularity of any proceedings of such inferior court. The object of the provision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-founded error which is to be determined on the merits of individual cases. It is also well settled that while considering the same, the Revisional Court does not dwell at length upon the facts and evidence of the case to reverse those findings.

18. This position was reiterated in *State of Gujarat v. Dilipsinh Kishorsinh Rao*, 2023 SCC OnLine SC 1294 wherein it was observed:

“13. The power and jurisdiction of the Higher Court under Section 397 Cr. P.C. which vests the court with the power to call for and examine records of an inferior court is for the purposes of satisfying itself as to the legality and regularities of any proceeding or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law or the perversity which has crept into such proceedings. It would be apposite to

refer to the judgment of this court in *Amit Kapoor v. Ramesh Chandra*, (2012) 9 SCC 460 where the scope of Section 397 has been considered and succinctly explained as under:

“12. Section 397 of the Code vests the court with the power to call for and examine the records of an inferior court for the purposes of satisfying itself as to the legality and regularity of any proceedings or order made in a case. The object of this provision is to set right a patent defect or an error of jurisdiction or law. There has to be a well-founded error and it may not be appropriate for the court to scrutinise the orders, which upon the face of it bear a token of careful consideration and appear to be in accordance with the law. If one looks into the various judgments of this Court, it emerges that the revisional jurisdiction can be invoked where the decisions under challenge are grossly erroneous, there is no compliance with the provisions of law, the finding recorded is based on no evidence, material evidence is ignored or judicial discretion is exercised arbitrarily or perversely. These are not exhaustive classes but are merely indicative. Each case would have to be determined on its own merits.

13. Another well-accepted norm is that the revisional jurisdiction of the higher court is a very limited one and cannot be exercised in a routine manner. One of the inbuilt restrictions is that it should not be against an interim or interlocutory order. The Court has to keep in mind that the exercise of revisional jurisdiction itself should not lead to injustice ex-facie. Where the Court is dealing with the question as to whether the charge has been framed properly and in accordance with law in a given case, it may be reluctant to interfere in the exercise of

its revisional jurisdiction unless the case substantially falls within the categories aforestated. Even framing of charge is a much-advanced stage in the proceedings under the CrPC.”

19. In the present case, there is no patent defect and learned Trial Court has not erred in accepting the cancellation report.

20. Hence, the present revision petition fails and the same is dismissed in *limine*.

21. The observation made herein before shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla)
Judge

25th July, 2024
(Chander/Nikita)